

10 February 2020

Brethren Meeting Hall, Beckenham Hill Road

in the London Borough of Lewisham

planning application no. DC/19/114278

Strategic planning application stage 1 referral

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008.

The proposal

The demolition of the single storey building at Brethren Hall and erection of a part one, part two storey building comprising new church space providing an auditorium capacity for 985 people, ancillary functions, outdoor amenity space, together with the provision of 151 car parking spaces.

The applicant

The applicant is **Citygate Church Limited** and the architect is **Stephen Davy Peter Smith Architects**.

Strategic issues

Principle of development: The site lies entirely within Metropolitan Open Land. Whilst the replacement and enhancement of social infrastructure on the site could be supported, the building is materially larger than the existing building and therefore constitutes inappropriate development within the MOL. The acceptability of the proposal would be dependent upon evidencing that any harm to the MOL is outweighed by 'very special circumstances' (VSC). At present, the presented VSC do not outweigh harm to the MOL. The applicant should also seek to reduce the bulk of the building to reduce impact upon openness.

Urban design: The applicant should provide further visualisations to assist in the assessment of impact on the MOL.

Transport: Further information is required including justification for the level of cycle parking and the proposed phased provision. The number of car parking spaces should be reduced.

Sustainability: Further information is required regarding energy, water efficiency and green infrastructure.

Recommendation

That Lewisham Council be advised that the application does not comply with the London Plan and the Mayor's Intend to Publish London Plan for the reasons set out in paragraph 79 of this report; but that the possible remedies set out in that paragraph could address these deficiencies.

Context

1 On 25 November 2019 the Mayor of London received documents from Lewisham Council notifying him of a planning application of potential strategic importance to develop the above site for the above uses. Under the provisions of The Town & Country Planning (Mayor of London) Order 2008 the Mayor must provide the Council with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. The Mayor may also provide other comments. This report sets out information for the Mayor's use in deciding what decision to make.

2 The application is referable under Category 3D of the Schedule to the Order 2008:

- 3D: Development— (a) on land allocated as Green Belt or Metropolitan Open Land in the development plan, in proposals for such a plan, or in proposals for the alteration or replacement of such a plan; and (b) which would involve the construction of a building with a floorspace of more than 1,000 square metres or a material change in the use of such a building.

3 Once Lewisham Council has resolved to determine the application, it is required to refer it back to the Mayor for his decision, as to whether to direct refusal or allow the Council to determine it itself, unless otherwise advised. In this instance if the Council resolves to refuse permission it need not refer the application back to the Mayor.

4 The Mayor of London's statement on this case will be made available on the GLA website www.london.gov.uk.

Site description

5 The site is approximately 1.47ha and located on Beckenham Hill Road (A2015). It is bound to the south by Beckenham Hill Road, to the east by private playing fields and to the west by Sedgehill School. To the north is a housing estate consisting of 3 storey blocks with pitched roofs.

6 The site is occupied by a single storey building which was used as a place of worship by the Plymouth Brethren for nearly 30 years. There is an extensive area of car parking within the site and vehicle access is from Beckenham Hill Road. The site is currently vacant.

7 The building is a detached single storey brick building with an internal floor area of 660 sq.m. that has a seating capacity of around 800 people in a main meeting hall.

8 The site is located within Metropolitan Open Land (MOL) and included in a Green Chain Area within Lewisham's adopted policies map.

9 The nearest section of the Transport for London Road Network (TLRN) is (A21) Bromley Road, approximately 850 metres away. The nearest section of the Strategic Road Network (SRN) is (A2015) Beckenham Hill Road, adjacent to the site's southern boundary.

10 The nearest bus stops and national rail station (Beckenham Hill Station), are approximately 0.33 and 0.5 kilometres away respectively. As there is only one bus route and the Thameslink service within reasonable walking distance, the site has a Public Transport Access Level (PTAL) of 2 (on a scale from 0-6b, where 6b is the highest).

11 The nearest existing cycle route is the National Cycle Network: Green Chain – Beckenham Place Park, approximately 1.25 kilometres away. There is a proposed Quietway route in a similar location.

Details of the proposal

12 The proposal consists of the demolition of the existing building and construction of a new part one storey part two storey building comprising of:

- 6,435 sq.m. (GIA) of church space
- auditorium capacity for 985 people
- ancillary function space
- outdoor amenity space
- 151 car parking spaces

13 Case history

14 There is no relevant strategic planning history associated with this site. The applicant has not engaged in any pre-application discussions with the GLA regarding the proposal.

Strategic planning issues and relevant policies and guidance

15 For the purposes of Section 38(6) of the Planning and Compulsory Purchase Act 2004, the development plan in force for the area is the Lewisham Core Strategy 2011; Lewisham Site Allocations Local Plan 2013; Lewisham Development Management Local Plan 2014; Supplementary Planning documents; and, the 2016 London Plan (Consolidated with alterations since 2011).

16 The following are relevant material considerations:

- The National Planning Policy Framework and National Planning Practice Guidance (February 2019);
- The London Plan intend to publish version (December 2019) which should be taken into account on the basis explained in paragraph 48 of the NPPF.

17 The relevant issues and corresponding policies are as follows:

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|---------------------------|---|
| • Metropolitan Open Land | <i>London Plan;</i> |
| • Social infrastructure | <i>London Plan; Social Infrastructure SPG;</i> |
| • Urban design | <i>London Plan;</i> |
| • Sustainable Development | <i>London Plan; London Environment Strategy;</i> |
| • Transport | <i>London Plan; the Mayor's Transport Strategy;</i> |

Principle of development

18 London Plan Policy 7.16 and Policy G2 of the Mayor's Intend to Publish London Plan affords London's Metropolitan Open Land (MOL) the strongest possible protection. Paragraph 8.2.1 of the Mayor's Intend to Publish London Plan and Policy 7.17 of the London Plan are clear that national policy with regard to the Green Belt extends to the capital's MOL in accordance with national guidance. Therefore, where the NPPF makes reference to the Green Belt, this should be read as equally applying to MOL. Policy G3 of the Mayor's Intend to Publish London Plan states that MOL should be protected from inappropriate development and proposals that harm MOL should be refused.

19 Chapter 13 of the revised NPPF (Protecting Green Belt land) provides guidance on development proposals which impact the Green Belt, and by extension, MOL. Paragraph 133 of the NPPF states that the fundamental characteristic of the Green Belt is its openness and its permanence and a key purpose of the Green Belt is to prevent encroachment, which would reduce green space, to check sprawl of built up areas and to assist in urban regeneration, by encouraging the 'recycling' of derelict and other urban land, as set out in paragraph 134.

20 Paragraph 143 of the NPPF states that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in 'very special circumstances'. When determining applications, LPAs should ensure that substantial weight is given to any harm to the Green Belt. 'Very Special Circumstances' will not exist unless the potential harm to the Green Belt by reason of inappropriateness, or any other harm, is clearly outweighed by other considerations.

21 The construction of new buildings should be regarded as inappropriate development, as set out in paragraph 145 with some exceptions, including d) the replacement of a building, provided the new building is in the same use and not materially larger than the one it replaces.

22 The proposed building would replace an existing building which has previously been in community use. However, the figures provided by the applicant suggest the existing internal floor area is 660 sq.m. with a seating capacity of around 800 people. The proposal is for a new building comprising 6,435 sq.m. of gross internal area.

23 As the proposed building is materially larger than the one it replaces, the development would constitute 'inappropriate development'. Inappropriateness is, by definition, harmful; and as such the development should be refused except in 'Very Special Circumstances'. Very Special Circumstances will only exist where harm to the Green Belt/MOL by reasons of inappropriateness, and any other harm, is clearly outweighed by other considerations. It is therefore necessary to assess the impact on the openness of the MOL (both visual and volumetric) and the harm to Green Belt and MOL purposes in order to consider whether this is outweighed by Very Special Circumstances (VSC).

Other harm to the MOL

24 As noted above, there is harm to the MOL by reason of inappropriateness. In order to assess whether the development causes any other harm to the MOL it is necessary to consider the impact of the proposals on the MOL openness and purposes.

25 The submitted material suggests the proposed building will be materially larger than the existing, and the applicant has provided visualisations of the new building. However, there is no comparison drawings showing the outline of the existing building compared to the proposed building and comparative visual images must also be provided to enable a full assessment of the impact on the openness of the MOL. In particular, the height of the building relative to the existing building is required. CGIs and viewpoints from wider views are also required and until this information is provided, GLA officers cannot come to a view on the level of MOL harm the scheme would give rise to.

'Very Special Circumstances' (VSC)

26 When determining applications, a local planning authority should ensure that substantial weight is given to any harm to the MOL and VSC will not exist unless the potential harm to the MOL by reason of inappropriateness, or any other harm, is clearly outweighed by other considerations.

27 The applicant has set out its case for 'VSC' for the development as follows:

- The proposal will bring the site back into active use.
- The applicant cannot compete for other urban sites given space requirements and financial constraints.
- The proposal provides for community uses.
- The building adopts the highest quality design and will provide significant visual and landscape enhancement in the area.
- There will be no loss of employment floorspace and the proposal will provide employment associated with the community uses proposed.
- The proposal will have no adverse impact on local amenity.

28 The applicant has stated that the building is currently vacant. It is unclear when the former church use ceased and this should be clarified. Furthermore, this is not considered to demonstrate very special circumstances as the re-use or replacement of the building in the same use could be appropriate development.

29 The applicant considers that one of the VSC for this development is that the church cannot compete for other urban sites given the size of the site required for its purposes and the more competitive prices that urban land would generate. However, no evidence of a sequential site search to demonstrate that any other sites have been considered has been provided, nor comparative information on values. Further information should be provided to explain why it is felt the existing church building cannot be reused or modestly and sensitively extended to accommodate the new church use. Details of the church's congregation, catchment and proposed services should also be provided to help explain the need for a building of the size proposed.

30 The applicant has stated that one of the VSC for the proposal is that the building will be available for community uses and the site will be accessible to the public. However, the extent of this benefit or the means by which it might be achieved is not provided. Further information is therefore needed on these community benefits, including availability to the public and rent levels. GLA officers would also expect appropriate conditions or a legal agreement be provided with any grant of planning permission to ensure community groups would have access to the proposed facilities.

31 The applicant considers one of the 'VSC' for this development is that the proposal would result in no loss of employment floorspace and will provide employment. However, no figures have been provided on the number of existing or proposed jobs. Therefore, only limited weight can be given to this argument.

32 The design of the proposed building has incorporated green roofs and soft landscaping. It also proposes a substantial reduction in the proportion of hard surfacing which is supported. However, the applicant must also respond to comments raised below regarding the urban greening factor and energy efficiency improvements.

Metropolitan Open Land conclusion

33 The replacement community building is materially larger than the existing building and is therefore inappropriate development. The applicant has presented a 'very special circumstances' case in order to justify the inappropriate development; however, the applicant has not yet demonstrated that this would outweigh the harm to MOL the proposals would cause and further information is required to support the applicant's 'Very Special Circumstances' case.

34 Inadequate information has been provided to properly assess the impact on the openness of the MOL or its purposes and this is required in order for GLA officers to assess the level of harm.

Social Infrastructure

35 London Plan Policy 3.16, Policy S1 of the Mayor's Intend to Publish London Plan and the Mayors Social Infrastructure SPG supports developments which enhance social infrastructure.

36 Policy S1 of the Mayor's Intend to Publish London Plan states that development proposals that provide high quality, inclusive social infrastructure that addresses a local or strategic need and supports service delivery strategies should be supported. The policy is also supportive of redundant forms of social infrastructure being considered for full or partial use for social infrastructure before alternative developments are considered. The applicant has stated that the site is currently vacant and the proposal will bring a new D1 use to the site and indicated that its proposal would increase the amount of D1 floorspace. Clarification on the former church use of the site should however be provided to assist officers to better understand the proposal and assess the scale of the proposed increase, which if the strategic planning issues set out in this report can be satisfactorily addressed, could be supported.

Equalities

37 The Council should consider whether an equalities assessment should be provided and advise GLA officers accordingly.

Urban design

38 London Plan Policies 7.1 and 7.4 and Policies D1 and D2 of the Mayor's Intend to Publish London Plan, require development to have regard to the form, function and structure of an area and the scale, mass and orientation of surrounding buildings.

39 The design of the building has incorporated large expanses of glazing, an asymmetrical roof and basement/lower ground floor level to minimise the visual impact of the building. The proposal also incorporates green/brown roofs and areas of soft landscaping which improve the biodiversity and green infrastructure on the site. This element is strongly supported. While generally the design approach is supported, the building is clearly materially larger than the existing. It is understood that the massing of the building is driven by the need to provide community facilities but its size should be justified. The applicant should look at further reductions to the scale of the building.

40 Should permission be granted, the Council should secure appropriate and high quality materials.

Inclusive design

41 Policy 7.2 of the London Plan and D3 of the Mayor's Intend to Publish London Plan both require all new development to achieve the highest standards of accessible and inclusive design.

42 The plans show that there are level entrances to and from the building. There are two lifts per floor and disabled toilet and changing facilities have been provided. The auditorium will be designed with designated seating areas to facilitate wheelchair users both within the raised and lower ground seating areas to provide choice of where to sit and worship.

43 The parking layout provides for disabled parking bays close to the front of the entrance, reducing the distance required to travel in order to enter the building.

44 The submitted design and access statement details that the scheme will incorporate directional street lighting to assist users with navigation in periods of poor lighting, such as early winter evenings.

45 The Council should ensure that appropriate conditions are included with any grant of planning permission.

Transport

Trip Generation

46 A multi-modal trip generation assessment has been provided. Given the number and timing of car trips it is not considered that the development would impact on the strategic highway network. There is also adequate capacity on Thameslink trains to cater for peak demand from this place of worship albeit Sunday services are infrequent as is bus frequency of the one route near the site.

Healthy Streets

47 In line with Policy T2 of the Mayor's Intend to Publish London Plan, it is expected that all developments will deliver improvements to support the ten Healthy Streets indicators. However, there is no detail on how the proposed development would support this within the Transport Assessment (TA), and an Active Travel Zone (ATZ) assessment has not been undertaken. This work should be undertaken and the application should set out intended mitigation.

Cycle parking

48 Further information is required to confirm whether cycle parking is in accordance with the Mayor's Intend to Publish London Plan standards. Further justification for the level of cycle parking and the proposed phased provision should be supplied.

49 It is not understood why the need for smart attire would necessarily discourage cycle use. Similar circumstances apply for other land-uses and there would appear to be ample space to provide showers in the proposed changing rooms.

50 The design and access of cycle parking should be amended prior to any planning permission being granted to ensure compliance with London Cycle Design Standards (LCDS).

Car parking

51 One hundred and fifty one car parking spaces are proposed including disabled persons parking.

52 Policy T6.4 (B) of the Mayor's Intend to Publish London Plan states that in locations of PTAL 0-3, schemes should be assessed on a case-by-case basis and provision should be consistent with the Mayor's strategic mode share target. It is considered that the proposed provision does not reflect the Mayor's strategic mode share target. Therefore, car parking should be reduced to comply with Policy T6.4 of the Mayor's Intend to Publish London Plan, with justification provided for the number of spaces proposed.

53 Given the Metropolitan Open Land (MOL) location, on-street parking or shared use of adjacent car parking areas could be accepted instead of (not as well as) car parking on site in order to reduce development on-site.

54 Fifteen disabled persons parking bays are proposed from the outset, equating to 10 per cent of all spaces. This complies with Policy T6.5 of the Mayor's Intend to Publish London Plan, and is welcomed.

55 Given the nature of the use consideration should be given to providing a private minibus service for those attending worship and other events. This could replace car trips. In any circumstance drop off/pick-up spaces identified on-site for minibuses and disabled people.

56 It is proposed that 20% of car parking spaces will have active EVCP provision and a further 20% will have passive provision. This is considered acceptable in line with Policy T6 of the Mayor's Intend to Publish London Plan. If a private minibus service is to be provided then use of electric or hybrid vehicles is encouraged and parking spaces equipped accordingly.

Travel Plan

57 A framework Travel Plan has been provided. The modal share targets should be revised to reflect the requested reduction in car parking and increase in cycle parking alongside the potential private minibus service and consideration of car sharing. The full Travel Plan should be secured by condition in line with Policy T4 of the Mayor's Intend to Publish London Plan.

Servicing and construction

58 Justification for use of the basement for delivery and servicing should be provided as well as clarification as to how vehicles access the vehicular ramp to the basement.

59 A detailed Construction Logistics Plan (CLP) and Delivery and Servicing Plan (DSP) should be secured by condition in line with Policy T7 of the Mayor's Intend to Publish London Plan.

Sustainability

Energy

60 The Energy Hierarchy has broadly been followed; however, the applicant is required to review its energy proposals to ensure full compliance with the London Plan policies.

61 For the purposes of this assessment, the applicant is estimating the CO2 emission performance against London Plan policies using the SAP 2012 emissions factors. Robust justification should be provided for the use of the SAP 2012 emissions factors, and the use of SAP 10 emissions factors is strongly encouraged. The applicant should also use the GLA's Carbon Emission Reporting spreadsheet, which has been developed to allow the use of the updated SAP 10 emission factors alongside the SAP 2012 emission factors.

62 Based on the information provided, the non-domestic element of the proposed development is estimated to achieve a reduction of 17 tonnes per annum (11%) in regulated CO2 emissions compared to a 2013 Building Regulations compliant development. The Mayor's Intend to Publish London Plan includes a target of a 15% improvement on 2013 Building Regulations from energy efficiency which applicants should be aiming towards. The applicant should therefore model additional energy efficiency measures and aspire to meet the energy efficiency target.

63 The area weighted average (MJ/m²) and total (MJ/year) cooling demand for the actual and notional building should be provided and the applicant should demonstrate that the actual building's cooling demand is lower than the notional. A Dynamic Overheating Analysis to assess the overheating risk on any naturally ventilated spaces should be carried out.

64 The applicant has carried out an investigation and there are no existing or planned district heating networks within the vicinity of the proposed development. The applicant has committed to allow future connection to a district heating network. Drawings demonstrating how the site is to be future-proofed for this connection should be provided.

65 The applicant is proposing a communal heat network supplied by a centralised energy centre. All buildings should be connected to this heat network including space heating and domestic hot water. A drawing showing the route of the heat network linking all uses on the site should be provided alongside a drawing indicating the floor area, internal layout and location of the energy centre.

66 A detailed roof layout should be provided demonstrating that the roof's potential for a PV installation has been maximised. The on-site savings from renewable energy technologies should be maximised regardless of the London Plan targets having been met.

67 The applicant is not proposing air source heat pumps for heating due to noise and aesthetics which is not supported and it is noted that the applicant does propose cooling, which also requires similar outdoor units, producing noise. If technically feasible, a heat pump system should be provided to supply heating and hot water. The applicant should also consider a combined reversible heat pump system that can also provide cooling. Further information on the heat pump system is required.

68 The carbon dioxide savings fall short of the on-site target within Policy 5.2 of the London Plan. The applicant should consider the scope for additional measures aimed at achieving further carbon reductions.

69 Detailed comments have been provided to the Council.

Water

70 The site is in Flood Zone 1 and greater than 1 hectare in area. A Flood Risk Assessment (FRA) has been submitted as required under the NPPF. The approach to flood risk management for the proposed development complies with London Plan Policy 5.12 and Policy SI.12 of the Mayor's Intend to Publish London Plan.

71 The surface water drainage strategy for the proposed development complies with London Plan Policy 5.13 and Policy SI.13 of the Mayor's Intend to Publish London Plan.

72 No water efficiency information has been provided for the non-residential components of the development. The proposed development does not meet the requirements of London Plan Policy 5.15 and draft Policy SI.5 of the Mayor's Intend to Publish London Plan as it does not meet the water consumption targets of these policies.

Urban greening and biodiversity

73 The site is within Metropolitan Open Land. The site has been previously developed and includes a large area of hard standing with little greening. The footprint of the proposed building would exceed that of the current building, however the proportion of hard surfacing would decrease with the introduction of new soft landscape and a green roof covering the entirety of the proposed building. With regard to green infrastructure, the proposed development would provide the opportunity to improve the proportion of greening and ecological connectivity across the site which is supported.

74 The proposed development includes a range of urban greening, including trees, native hedgerows, shrubs, wildflower meadows, amenity grass, swale planting, a sedum roof and a biodiverse roof. This diversity of planting is supported and should be retained throughout design development.

75 The design process should continue to embed urban greening as a fundamental element of site and building design, in line with London Plan Policy 5.10 and Policies G1 and G5 of the Mayor's Intend to Publish London Plan. The application should calculate its Urban Greening Factor, as set out in Policy G5 of the Mayor's Intend to Publish London Plan and aim to achieve the specified target.

Local planning authority's position

76 Lewisham Council Planning Officers are currently reviewing the application.

Legal considerations

77 Under the arrangements set out in Article 4 of the Town and Country Planning (Mayor of London) Order 2008 the Mayor is required to provide the local planning authority with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. Unless notified otherwise by the Mayor, the Council must consult the Mayor again under Article 5 of the Order if it subsequently resolves to make a draft decision on the application, in order that the Mayor may decide whether to allow the draft decision to proceed unchanged or direct the Council under Article 6 of the Order to refuse the application. There is no obligation at this present stage for the Mayor to indicate his intentions regarding a possible direction, and no such decision should be inferred from the Mayor's statement and comments.

Financial considerations

78 There are no financial considerations at this stage.

Conclusion

79 London Plan and the Mayor's Intend to Publish London Plan policies on social infrastructure, MOL, urban design, transport and sustainability are relevant to this application. The application does not comply with the London Plan and the Mayor's Intend to Publish London Plan for the following reasons, but the remedies set out below could lead to the application becoming compliant:

- **Principle of development:** The site lies entirely within Metropolitan Open Land. Whilst the replacement and enhancement of social infrastructure on the site could be supported, the building is materially larger than the existing building it would replace and therefore constitutes inappropriate development within the MOL. The acceptability of the proposal would be dependent upon evidencing that any harm to the MOL is outweighed by 'very special circumstances'(VSC). At present, the presented VSC do not outweigh the harm to the MOL. The applicant should also seek to reduce the scale of the building to reduce impact upon openness.
- **Urban design:** The applicant should provide further visualisations to assist in the assessment of impact on the MOL.
- **Transport:** Further information is required including justification for the level of cycle parking and the proposed phased provision. The number of car parking spaces should be reduced.
- **Sustainability:** Further information is required regarding energy, water efficiency and green infrastructure.

for further information, contact GLA Planning Unit (Development & Projects Team):

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